

Fly GACA — Anti-Harassment & Anti-Discrimination Policy

SECTION 05-people TYPE policy STATUS **draft** OWNER Founder / HR UPDATED 2026-07-27

سياسة مكافحة التحرش والتمييز — فلاي فاكا

Version: 0.1 (draft) | Date: 2026-07-03 | Folder: 05-people/

DRAFT — PENDING LEGAL REVIEW. This policy must be reviewed by a qualified Saudi HR professional and/or Saudi-licensed legal counsel before the first non-founder hire. It is not legal advice. The Saudi **Anti-Harassment Law (Royal Decree M/96, 1439H / 2018)** and its implementing regulations, the Saudi Labor Law (Royal Decree M/51), and HRSD workplace regulations govern; where this policy conflicts with the law, the law prevails.

1. Purpose and Policy Statement

1.1 Fly GACA is committed to a workplace — physical, remote, and online — free from harassment, sexual harassment, discrimination, bullying, and retaliation. 1.2 Harassment is a **criminal offence** in Saudi Arabia under the Anti-Harassment Law (Royal Decree M/96, 2018), and HRSD requires employers to maintain internal controls against it. This policy is Fly GACA's internal control, supporting Vision 2030 workplace-inclusion commitments and the mixed-gender workplace standards in force since the 2017–2019 reforms. 1.3 Zero tolerance: substantiated violations lead to disciplinary action up to immediate termination under Labor Law Art. 80, and — where the law requires or the reporter elects — referral to the competent authorities.

2. Scope

2.1 **Who:** all BDA Company International (شركة بدع الدولية) employees (including probationers), Tamheer trainees, contractors, and anyone acting for the Company; protection extends to candidates, customers, and visitors interacting with us. 2.2 **Where:** company premises, remote work settings, business travel, work events, and all company systems — Slack, email, GitHub, HubSpot, video calls, and social media when representing Fly GACA (see 05-people/social-media-policy.docx). 2.3 **When:** effective on adoption; applies to conduct connected to work regardless of working hours.

3. Definitions

Term	Definition
Harassment	Unwelcome conduct — verbal, physical, written, or electronic — that offends, humiliates, or intimidates, including any statement, act, or gesture with sexual connotation as defined by the Anti-Harassment Law (M/96).
Sexual harassment	Unwelcome sexual advances, requests for favours, or other verbal/physical/digital conduct of a sexual nature, including via messaging platforms or media.
Discrimination	Less favourable treatment in hiring, pay, promotion, training, or termination based on gender, disability, age, nationality, or other protected characteristics, contrary to Saudi Labor Law non-discrimination provisions and HRSD regulations [Owner to confirm current article references with counsel].
Bullying	Repeated unreasonable behaviour that humiliates, intimidates, or undermines — including public shaming in Slack channels or code reviews.
Retaliation	Any adverse action taken because a person reported, or assisted with a report, in good faith.

4. Prohibited Conduct (non-exhaustive)

- Physical: unwelcome contact, blocking movement, assault.
- Verbal: sexual comments or jokes, slurs, degrading remarks about gender, nationality, religion observance, disability, or appearance.
- Digital: unwelcome DMs, sharing inappropriate images or memes, persistent unwanted contact after hours, harassing comments in Slack/GitHub/email.
- Abuse of authority: linking any employment benefit (offer, raise, review score, equity, leave approval) to submission to unwelcome conduct.
- Discriminatory decisions: unequal pay for equal work, exclusion from opportunities based on protected characteristics.

5. Reporting

5.1 Channels

1. **Founder (default recipient):** in person, Slack DM, or hr@flygaca.com / i@flygaca.com (routing per 02-legal/email-routing.md) — marked "Confidential".
2. **If the complaint concerns the Founder:** report to the Company's designated external recipient [Owner to confirm — appoint an external HR advisor or counsel as alternate before first hire; same appointee as Grievance Procedure §4.1(4)].
3. **External (always available):** the employee may at any time report to **HRSD** or, for criminal conduct, to the **Public Prosecution / police** under the Anti-Harassment Law. Using internal channels first is encouraged but never required, and internal process never suspends statutory rights or criminal timelines.

5.2 How to report

A report should where possible include: what happened, when and where (or which platform), who was involved, witnesses, and any evidence (screenshots, messages). Verbal reports are accepted and will be written up and confirmed with the reporter. Reports may be made by the person affected **or any witness**. Anonymous reports are accepted and investigated as far as the information allows.

5.3 Timeline

There is no internal deadline to report. Earlier reporting helps evidence-gathering; the criminal limitation periods of the Anti-Harassment Law are a matter for the authorities, not this policy.

6. Investigation Procedure

1. **Acknowledgment:** within **2 working days**.
2. **Interim measures:** where needed to protect the reporter — adjusted reporting lines, channel restrictions, paid suspension of the respondent — decided within **5 working days**, without prejudging the outcome.
3. **Investigation:** follows the investigation standard in the Grievance & Disciplinary Procedure §7 (named investigator, written allegation, right to respond, evidence log). Target completion: **15 working days**, extendable in writing with reasons.
4. **Standard:** findings on the balance of the evidence gathered; the investigator documents reasoning.
5. **Outcome:** both reporter and respondent receive a written outcome. Substantiated findings trigger the disciplinary steps in the Grievance & Disciplinary Procedure §6 — for harassment, typically Step 3 (final warning) or Step 4 (Art. 80 termination) — and, where the conduct appears criminal, the Company will meet any legal notification obligations and support the reporter's right to file a criminal complaint.
6. **Unsubstantiated ≠ bad faith:** a report not proven is closed without penalty to the good-faith reporter. Knowingly false or malicious accusations are themselves misconduct (and are separately actionable under the Anti-Harassment Law).

7. Confidentiality

7.1 Reports, identities, and investigation records are shared strictly need-to-know. The Anti-Harassment Law requires confidentiality of the complainant's identity — breaching it is itself a violation of this policy. 7.2 Records live in a restricted HR folder in Drive (06-operations-it/03-drive-folder-structure.docx), access limited to the Founder (or the external alternate where conflicted). 7.3 Disclosure happens only where legally required (HRSD, Public Prosecution, court order) or with the reporter's consent.

8. Non-Retaliation

8.1 Retaliation against anyone who reports, or participates in an investigation, in good faith is prohibited and treated as an independent serious violation — even if the underlying report is not substantiated. 8.2 Examples: dismissal or demotion, dropped from projects, hostile treatment, negative review scores traceable to the report, exclusion from communication channels. 8.3 Suspected retaliation is reported through the same channels (§5.1) and investigated under §6.

9. Roles & Responsibilities

Role	Responsibilities
All employees	Do not engage in prohibited conduct; report what you experience or witness; cooperate honestly with investigations.
Managers (Founder for now)	Model the standard; act on every report — a manager who receives a report must not sit on it; apply interim measures fairly.
Founder / HR	Maintain this policy, run or delegate investigations, keep records, deliver onboarding awareness (Onboarding Checklist Phase B), report annually on cases (count only, anonymised).
External advisor [Owner to confirm]	Receive and investigate complaints involving the Founder.

10. Training and Acknowledgment

10.1 Every new hire receives this policy on Day 1 (Onboarding Checklist, 05-people/onboarding-checklist-2026-07-03.md) and acknowledges it via the Employee Handbook Acknowledgment. 10.2 Refresher: annually, and whenever the policy materially changes (14 days' notice via Slack, consistent with Leave & PTO Policy §17).

11. Records and Review

11.1 Case records retained for the duration of employment plus the statutory limitation period **[Owner to confirm retention with counsel]**; anonymised case counts reviewed annually. 11.2 Policy reviewed annually (each January), on any change to the Anti-Harassment Law, Labor Law, or HRSD regulations, and at 10+ employees. An **Arabic version** will be prepared before adoption **[Owner to confirm translation]**. 11.3 Questions: **Adel Yahya A. Madkhali** | iflygaca.com | +966 51 096 6969.

Cross-references: Anti-Harassment Law (Royal Decree M/96, 2018) · Saudi Labor Law (Royal Decree M/51) Arts. 80 and non-discrimination provisions · 05-people/grievance-and-disciplinary-procedure-2026-07-03.md §§6–7 · 05-people/employee-handbook.docx · 05-people/social-media-policy.docx · 02-legal/email-routing.md

DRAFT